

defendant's conduct. (*Service of Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1818; *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.)

Notably, an exception to the general rule exists when it appears the facts lie more within the defendant's knowledge than the plaintiff's, i.e., less specificity is required where "defendant must necessarily possess full information concerning the facts of the controversy." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216, *superseded by statute, on other grounds; see also Miles v. Deutsche Bank Nat'l Trust Co.* (2015) 236 Cal.App.4th 394, 403-404 [finding omission of names of mortgage servicer employees and their authority to speak not fatal to fraud claim where defendants had more knowledge of the facts than did plaintiffs]; *Tenet Healthsystem Desert, Inc. v. Blue Cross of Calif.* (2016) 245 Cal.App.4th 821, 840 [holding complaint need not specify information uniquely within defendants' knowledge, such as who prepared documents in question].)

Here, the Complaint alleges Defendant TMS concealed specific material facts, including that the battery system had one or more defects and that as a result of the defective battery, vehicles experienced overheating, loss of propulsion power while driving, sudden and premature battery failure, failure to start, reduced range, thermal runaway, and/or spontaneous combustion and/or fire. (FAC ¶ 65.) The Complaint need not allege the identity of the specific facts establishing pre-sale knowledge or concealment conduct, as Defendant TMS is in a better position to know that information.

Duty to Disclose

Defendant TMS contends the Complaint does not allege facts supporting a duty by TMS to disclose because the Complaint does not allege sufficiently specific facts plausibly establishing that TMS had pre-sale knowledge of the alleged battery defect.

"A duty to speak may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking; it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent." (*SCC Acquisitions, Inc. v. Central Pac. Bank* (2012) 207 Cal.App.4th 859, 860.) Under California law, "[t]here are "four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of